



**RECLAIMING POWER AND PLACE:
THE FINAL REPORT OF THE NATIONAL INQUIRY INTO MISSING AND
MURDERED INDIGENOUS WOMEN AND GIRLS (June 2019)**

CALLS FOR JUSTICE (Excerpts)

The full report is available online: <https://www.mmiwg-ffada.ca/final-report/>

[...]

Justice

[...]

- 5.15 We call upon federal, provincial, and territorial governments and all actors in the justice system to consider Gladue reports as a right and to resource them appropriately, and to create national standards for Gladue reports, including strength-based reporting.
- 5.16 We call upon federal, provincial, and territorial governments to provide community-based and Indigenous-specific options for sentencing.
- 5.17 We call upon federal, provincial, and territorial governments to thoroughly evaluate the impacts of Gladue principles and section 718.2(e) of the *Criminal Code* on sentencing equity as it relates to violence against Indigenous women, girls, and 2SLGBTQIA people.
- 5.18 We call upon the federal government to consider violence against Indigenous women, girls, and 2SLGBTQIA people as an aggravating factor at sentencing, and to amend the *Criminal Code* accordingly, with the passage and enactment of Bill S-215.

[NOTE:] Bill S-215 would have added provisions to the *Criminal Code* whereby a court imposing a sentence for one of several listed offences (including murder, manslaughter, attempted murder, uttering threats, and assault and sexual assault offences) “shall consider as an aggravating circumstance the fact that the victim of the offence is a female person who is Indian, Inuit or Métis.” The Bill passed the Senate but was defeated in the House of Commons in March 2019. In June 2019, Bill C-75 received Royal Assent. It added sections 718.04 and 718.201 to the *Criminal Code*.]